

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-01

20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED

**RESPONDENT’S MOTION TO FILE UNDER SEAL RESPONDENT’S
OPPOSITION BRIEF, PROPOSED FINDINGS OF FACT, RESPONSE TO
COMPLAINANT’S PROPOSED FINDINGS OF FACT, AND APPENDIX TO THE
OPPOSITION BRIEF**

Pursuant to Rule 5 of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R. Section 502.5, and the Protective Order entered by the Presiding Officer in this case on May 8, 2025, Dkt. 32 (the “Protective Order”), Respondent BAL Container Line Co., Limited (“Respondent”) respectfully moves for an order permitting Respondent to file under seal unredacted copies of its Opposition Brief (“Brief”), Proposed Findings of Fact (“RPFF”), Responses to Complainant’s Proposed Findings of Fact (“RCFF”), and Appendix to the Opposition Brief (“Appendix”, together with the Brief, RPFF, and RCFF, the “Opposition Filings”), filed contemporaneously herewith, and to file on the public docket of this case redacted copies of the Opposition Filings. Respondent’s counsel met and conferred with Complainant’s counsel prior to the filing of this motion. Complainant does not oppose the relief sought.

I. LEGAL STANDARD

Pursuant to Commission Rule 5(b), a motion for confidential treatment must specify the information in a filing for which protection is sought and show good cause by demonstrating “the

information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii).” 46 C.F.R. Section 502.5(b). The Protective Order agreed to by the Parties and entered by the Presiding Officer in this case reinforces the standard for confidentiality protection of documents produced in discovery in this case. *See* Protective Order Sections 2-3.

II. REQUEST FOR CONFIDENTIAL TREATMENT AND LEAVE TO FILE UNDER SEAL

Respondent’s Opposition Filings contain material designated by Complainant or Respondent as Confidential or Attorneys Eyes Only (“AEO”) pursuant to the Protective Order (the “Confidential Materials”).¹ The Confidential Materials for which Respondent seeks confidential treatment consist of documents produced in discovery by Complainant and Respondent, which were labeled Confidential or Attorneys Eyes Only pursuant to the Protective Order, and consist of non-public email communications and documents from Complainant and Respondent’s respective custodians.

Good cause exists for the confidential treatment of the Confidential Materials. The Confidential Materials are subject to the Protective Order in this action and have been designated by Complainant and Respondent as either Confidential or AEO pursuant to the Protective Order. Respondent seeks confidential treatment only for materials that the parties designated as Confidential or AEO in discovery and is not seeking any treatment beyond what the Protective Order already requires.

Respondent’s proposed redactions of the Confidential Materials are highlighted in yellow throughout the Opposition Filings.

¹ The Table of Contents to Respondent’s Appendix to the Opposition Brief identifies the Subject Materials via yellow highlighting. *See* Appendix to the Opening Brief at ii, n1.

III. CONCLUSION

Wherefore, pursuant to the Protective Order and for good cause shown, Respondent respectfully requests leave to file its Opposition Filings under seal.

DATED: June 18, 2026

BMC LAW

By:



Bryce M. Cullinane, Esq. CASB No. 307079

bryce@bmc.law

David P. Collins, Esq. CASB No. 356864

david@bmc.law

8885 Research Drive, Suite 150

Irvine, CA 92618

*Attorneys for Respondent, Bal Container Line Co.,
Limited*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 18th day of June 2026, a true and correct copy of the foregoing
**RESPONDENT'S MOTION TO FILE UNDER SEAL RESPONDENT'S OPPOSITION BRIEF,
PROPOSED FINDINGS OF FACT, RESPONSE TO COMPLAINANT'S PROPOSED FINDINGS
OF FACT, AND APPENDIX TO THE OPPOSITION BRIEF** was served via electronic mail on:

Karl C. Huth
Matthew J. Reynolds
J. Zachery Morris
Gregory A. Crapanzano II
Mohini P.B. Rarrick
Heewan Noh

huth@huthreynolds.com
reynolds@huthreynolds.com
zmorris@huthreynolds.com
gcrapanzano@huthreynolds.com
mpriya@huthreynolds.com
hnoh@huthreynolds.com



David P. Collins